RESOLUTION MSC.134(76)
(adopted on 12 December 2002)
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THE MARITIME SAFETY COMMITTEE,

RECALLING Article 28(b) of the Convention on the International Maritime Organization concerning the functions of the Committee,

RECALLING FURTHER article VIII(b) of the International Convention for the Safety of Life at Sea (SOLAS), 1974 (hereinafter referre d to as "the Convention"), concerning the amendment procedure applicable to the Annex to the Convention, other than to the provisions of chapter I thereof,

HAVING CONSIDERED, at its se venty-sixth session, amendments to the Convention, proposed and circulated in accordance with article VIII(b)(i) thereof,

1. ADOPTS, in accordance with article VIII(b)(iv) of the Convention, amendments to the Convention, the text of which is set out in the Annex to the present resolution;

proposed and circulated in accordance with article VIII(b)(i) thereof,

1. ADOPTS, in accordance with article VIII(b)(iv) of the Convention, amendments to the Convention, the text of which is set out in the Annex to the present resolution;

2. DETERMINES, in accordance with article V III(b)(vi)(2)(bb) of the Convention, that the said amendments shall be deemed to have b een accepted on 1 January 2004, unless, prior to that date, more than one third of the Contracting Governments to the Convention or Contracting Governments the combined merchant fleets of wh ich constitute not less than 50% of the gross tonnage of the world's merchant fleet, have notified their objections to the amendments;

3. INVITES SOLAS Contracting Governments to note that, in accordance with article VIII(b)(vii)(2) of the Convention, the amendmen ts shall enter into force on 1 July 2004 upon their acceptance in accordance with paragraph 2 above;

4. REQUESTS the Secretary-General, in c onformity with article VIII(b)(v) of the Convention, to transmit certified copies of the present resolution and the text of the amendments

their acceptance in accordance with paragraph 2 above;

4. REQUESTS the Secretary-General, in c onformity with article VIII(b)(v) of the Convention, to transmit certified copies of the present resolution and the text of the amendments contained in the Annex to all Contracting Governments to the Convention;

5. FURTHER REQUESTS the Secretary-General to transmit copies of this resolution and its Annex to Members of the Organization, wh ich are not Contracting Governments to the Convention.

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ANNEX

AMENDMENTS TO THE INTERNATIONAL CONVENTION FOR
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CHAPTER II-1

CONSTRUCTION – STRUCTURE, SUBDIVISION AND STABILITY,
MACHINERY AND ELECTRICAL INSTALLATIONS

PART A-1

STRUCTURE OF SHIPS

1 The following new regulation 3-6 is added after existing regulation 3-5:

“Regulation 3-6

Access to and within spaces in the cargo area of oil tankers and bulk carriers

1 Application

PART A-1

STRUCTURE OF SHIPS

1 The following new regulation 3-6 is added after existing regulation 3-5:

“Regulation 3-6

Access to and within spaces in the cargo area of oil tankers and bulk carriers

1 Application

1.1 Except as provided for in paragraph 1.2, th is regulation applies to oil tankers of 500 gross tonnage and over and bulk carriers, as defined in regulation IX/1, of 20,000 gross tonnage and over, constructed on or after 1 January 2005.

1.2 Oil tankers of 500 gross tonnage and over constructed on or after 1 October 1994 but before 1 January 2005 shall comply with the provisions of regulation II-1/12-2 adopted by resolution MSC.27(61).

2 Means of access to cargo and other spaces

2.1 Each space within the cargo area shall be provided with a permanent means of access to enable, throughout the life of a sh ip, overall and close-up inspections and thickness measurements of the ship’s structures to be carried out by the Administration, the company, as defined in regulation IX/ 1, and the ship’s personnel and others as necessary. Such means of access shall comply with the requirements of paragraph 5 and

the company, as defined in regulation IX/ 1, and the ship's personnel and others as necessary. Such means of access shall comply with the requirements of paragraph 5 and with the Technical provisions for means of access for inspections, adopted by the Maritime Safety Committee by resolution MSC.133(76), as may be amended by the Organization, provided that such amendments are adopted, brought into force and take effect in accordance with the provisions of article VIII of the present Convention concerning the amendment procedures applicable to the Annex other than chapter I.

2.2 Where a permanent means of access may be susceptible to damage during normal cargo loading and unloading operations or wher e it is impracticable to fit permanent means of access, the Administration may allow, in lieu thereof, the provision of movable or portable means of access, as specified in the Technical provisions, provided that the means of attaching, rigging, suspending or supporting the portable means of access forms a permanent part of the ship's structure. A ll portable equipment shall be capable of being readily erected or deployed by ship's personnel.

means of attaching, rigging, suspending or supporting the portable means of access forms a permanent part of the ship's structure. A ll portable equipment shall be capable of being readily erected or deployed by ship's personnel.

2.3 The construction and materials of all m eans of access and their attachment to the ship's structure shall be to the satisfacti on of the Administration. The means of access shall be subject to survey prior to, or in conjunction with, its use in carrying out surveys in accordance with regulation I/10.

3 Safe access to cargo holds, cargo tanks, ballast tanks and other spaces

3.1 Safe access * to cargo holds, cofferdams, ballast tanks, cargo tanks and other spaces in the cargo area shall be direct from the open deck and such as to ensure their complete inspection. Safe access * to double bottom spaces may be from a pump-room, deep cofferdam, pipe tunnel, cargo hold, doubl e hull space or similar compartment not

complete inspection. Safe access * to double bottom spaces may be from a pump-room, deep cofferdam, pipe tunnel, cargo hold, doubl e hull space or similar compartment not intended for the carriage of oil or hazardous cargoes.

3.2 Tanks, and subdivisions of tanks, having a length of 35 m or more, shall be fitted with at least two access hatchways and ladders, as far apart as practicable. Tanks less than 35 m in length shall be served by at least one access hatchway and ladder. When a tank is subdivided by one or more swash bulkheads or similar obstructions which do not allow ready means of access to the other parts of the tank, at least two hatchways and ladders shall be fitted.

3.3 Each cargo hold shall be provided with at least two means of access as far apart as practicable. In general, these accesses should be arranged diagonally, for example one access near the forward bulkhead on the port side, the other one near the aft bulkhead on the starboard side.

4 Ship structure access manual

4.1 A ship’s means of access to carry out overall and close-up inspections and

access near the forward bulkhead on the port side, the other one near the aft bulkhead on the starboard side.

4 Ship structure access manual

4.1 A ship’s means of access to carry out overall and close-up inspections and thickness measurements shall be described in a Ship structure access manual approved by the Administration, an updated copy of which sh all be kept on board. The Ship structure access manual shall include the following for each space in the cargo area:

.1 plans showing the means of access to the space, with appropriate technical specifications and dimensions;

.2 plans showing the means of access w ithin each space to enable an overall inspection to be carried out, with a ppropriate technical specifications and dimensions. The plans shall indicat e from where each area in the space can be inspected;

.3 plans showing the means of access w ithin the space to enable close-up inspections to be carried out, with a ppropriate technical specifications and dimensions. The plans shall indicate the positions of critical structural areas, whether the means of access is permanent or portable and from where each area can be inspected;

dimensions. The plans shall indicate the positions of critical structural areas, whether the means of access is permanent or portable and from where each area can be inspected;

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* Refer to the Recommendations for entering enclosed spaces aboard ships, adopted by the Organization by resolution A.864(20).

.4 instructions for inspecting and main taining the structural strength of all means of access and means of attachment, taking into account any corrosive atmosphere that may be within the space;

.5 instructions for safety guidance when rafting is used for close-up inspections and thickness measurements;

.6 instructions for the rigging and use of any portable means of access in a safe manner;

.7 an inventory of all portable means of access; and

.8 records of periodical inspections and maintenance of the ship’s means of access.

.6 instructions for the rigging and use of any portable means of access in a safe manner;

.7 an inventory of all portable means of access; and

.8 records of periodical inspections and maintenance of the ship's means of access.

4.2 For the purpose of this regulation "critical structural areas" are locations which have been identified from calculations to require monitoring or from the service history of similar or sister ships to be sensitive to cracking, buckling, deformation or corrosion which would impair the structural integrity of the ship.

5 General technical specifications

5.1 For access through horizontal openings, hatc hes or manholes, the dimensions shall be sufficient to allow a person wearing a self-contained air-breathing apparatus and protective equipment to ascend or desce nd any ladder without obstruction and also provide a clear opening to facilitate the hoisti ng of an injured person from the bottom of the space. The minimum clear opening sha ll not be less than 600 mm x 600 mm. When access to a cargo hold is arranged through the cargo hatch, the top of the ladder shall be

the space. The minimum clear opening sha ll not be less than 600 mm x 600 mm. When access to a cargo hold is arranged through the cargo hatch, the top of the ladder shall be placed as close as possible to the hatch coam ing. Access hatch coamings having a height greater than 900 mm shall also have steps on the outside in conjunction with the ladder.

5.2 For access through vertical openings, or manholes, in swash bulkheads, floors, girders and web frames providing passage th rough the length and breadth of the space, the minimum opening shall be not less than 600 mm x 800 mm at a height of not more than 600 mm from the bottom shell plating unless gratings or other foot holds are provided.

5.3 For oil tankers of less than 5,000 tonne s deadweight, the Administration may approve, in special circumstances, smaller dimensions for the openings referred to in paragraphs 5.1 and 5.2, if the ability to traverse such openings or to remove an injured person can be proved to the satisfaction of the Administration."

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person can be proved to the satisfaction of the Administration."

PART B

SUBDIVISION AND STABILITY

Regulation 12-2 - Access to spaces in the cargo area of oil tankers

2 The existing regulation 12-2 is deleted.

PART C

MACHINERY INSTALLATIONS

Regulation 31 - Machinery control

3 The following new subparagraph .10 is added to paragraph 2 of the regulation:

".10 automation systems shall be designed in a manner which ensures that threshold warning of impending or imminent sl owdown or shutdown of the propulsion system is given to the officer in charge of the navigational watch in time to assess navigational circumstances in an emerge ncy. In particular, the systems shall control, monitor, report, alert and take safety action to slow down or stop propulsion while providing the officer in charge of the navigational watch an opportunity to manually intervene, except for those cases where manual

control, monitor, report, alert and take safety action to slow down or stop propulsion while providing the officer in charge of the navigational watch an opportunity to manually intervene, except for those cases where manual intervention will result in total failure of the engine and/or propulsion equipment within a short time, for example in the case of overspeed."

CHAPTER II-2

CONSTRUCTION – FIRE PROTECTION, FIRE DETECTION AND FIRE EXTINCTION

Regulation 3 – Definitions

4 In paragraph 20, the words “regulation V II/2” are replaced by the words “the IMDG Code, as defined in regulation VII/1.1”.

Regulation 19 – Carriage of dangerous goods

5 In table 19.3, in vertical columns 7 and 8 (c oncerning flashpoints of class 3), the numbers “3.1 3.2” and “3.3”, respectively, are replaced by the number “3”.

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6 In table 19.3, in vertical column 13 (concer ning class 5.2), the character “X” in rows 15

6 In table 19.3, in vertical column 13 (concer ning class 5.2), the character “X” in rows 15 (concerning paragraph 3.10.1) and 16 (concerning pa ragraph 3.10.2) is replaced by the character “X16” and a new note 16 is added as follows:

“16 Under the provisions of the IMDG Code, as amended, stowage of class 5.2 dangerous goods under deck or in enclosed ro-ro spaces is prohibited.”

CHAPTER III

LIFE-SAVING APPLIANCES AND ARRANGEMENTS

Regulation 26 - Additional requirements for ro-ro passenger ships

7 The following new subparagraph .4 is added at the end of paragraph 1:

".4 before 1 July 2004 shall comply with the requirements of paragraph 2.5 not later than the first survey on or after that date."

8 The following new subparagraph .5 is added at the end of paragraph 2:

".5 Liferafts carried on ro-ro passenger ship s shall be fitted with a radar transponder * in the ratio of one transponder for every four liferafts. The transponder shall be mounted inside the liferaft so its antenna is more than one metre above the sea

in the ratio of one transponder for every four liferafts. The transponder shall be mounted inside the liferaft so its antenna is more than one metre above the sea level when the liferaft is deployed, except th at for canopied reversible liferafts the transponder shall be so arranged as to be readily accessed and erected by survivors. Each transponder shall be a rranged to be manually erected when the liferaft is deployed. Containers of lifer afts fitted with transponders shall be clearly marked.

_____

* Refer to the Performance standards for survival craft radar transponders for use in search and rescue operations, adopted by the Organization by resolution A.802(19).”

CHAPTER XII

ADDITIONAL SAFETY MEASURES FOR BULK CARRIERS

9 The following new regulations 12 and 13 are added after existing regulation 11:

“Regulation 12

Hold, ballast and dry space water level detectors

(This regulation applies to bulk carriers regardless of their date of construction)

1 Bulk carriers shall be fitted with water level detectors:

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1 Bulk carriers shall be fitted with water level detectors:

.1 in each cargo hold, giving audible and visual alarms, one when the water level above the inner bottom in any hold reaches a height of 0.5 m and another at a height not less than 15% of the depth of the cargo hold but not more than 2 m. On bulk carriers to which regulation 9.2 applies, detectors with only the latter alarm need be installed. The water level detectors shall be fitted in the aft end of the cargo holds. For cargo holds which are used for water ballast, an alarm overriding de vice may be installed. The visual alarms shall clearly discriminate be tween the two different water levels detected in each hold;

.2 in any ballast tank forward of the collision bulkhead required by regulation II-1/11, giving an audible a nd visual alarm when the liquid in the tank reaches a level not exceeding 10% of the tank capacity. An alarm

detected in each hold;

.2 in any ballast tank forward of the collision bulkhead required by regulation II-1/11, giving an audible a nd visual alarm when the liquid in the tank reaches a level not exceeding 10% of the tank capacity. An alarm overriding device may be installed to be activated when the tank is in use; and

.3 in any dry or void space other than a chain cable locker, any part of which extends forward of the foremost cargo hold, giving an audible and visual alarm at a water level of 0.1 m above the deck. Such alarms need not be provided in enclosed spaces the volume of which does not exceed 0.1% of the ship's maximum displacement volume.

2 The audible and visual alarms specified in paragraph 1 shall be located on the navigation bridge.

3 Bulk carriers constructed before 1 July 2004 shall comply with the requirements of this regulation not later than the date of the annual, intermediate or renewal survey of the ship to be carried out after 1 July 2004, whichever comes first.

Regulation 13

Availability of pumping systems

(This regulation applies to bulk carriers regardless of their date of construction)

the ship to be carried out after 1 July 2004, whichever comes first.

Regulation 13

Availability of pumping systems

(This regulation applies to bulk carriers regardless of their date of construction)

1 On bulk carriers, the means for draining and pumping ballast tanks forward of the collision bulkhead and bilges of dry spaces a ny part of which extends forward of the foremost cargo hold shall be capable of being brought into operation from a readily accessible enclosed space, the location of which is accessible from the navigation bridge or propulsion machinery control position without traversing exposed freeboard or superstructure decks. Where pipes servi ng such tanks or bilges pierce the collision bulkhead, valve operation by means of remote ly operated actuators may be accepted, as an alternative to the valve control specifi ed in regulation II-1/11.4, provided that the location of such valve controls complies with this regulation.

2 Bulk carriers constructed before 1 July 2004 shall comply with the requirements of this regulation not later than the date of th e first intermediate or renewal survey of the

location of such valve controls complies with this regulation.

2 Bulk carriers constructed before 1 July 2004 shall comply with the requirements of this regulation not later than the date of th e first intermediate or renewal survey of the ship to be carried out after 1 July 2004, but in no case later than 1 July 2007.”

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